DIVISION BENCH ITEM NO.122

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CA (CAA) No.8/ALD/2022 (First Motion)

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 3rd October, 2023

Attendance-Cum-Order Sheet of the Hearing.

NAME OF THE COMPANY	**PALIWAL MEDICARE PVT. LTD. WITH PALIWAL DIAGNOSTICS PVT. LTD.**
UNDER SECTION	**230/232 OF COMPANIES ACT, 2013**

COUNSEL APPEARED THROUGH PHYSICAL/ VIRTUAL HEARING:
Sh. Ankit Misra, CS *: For the Applicant Companies*

ORDER

Ld. Authorized Representative representing the Applicant Companies is present through VC.

1. It is argued by the Ld. Authorized Representative representing the Applicant Companies that there are 62 unsecured creditors of the Transferee Company and the consent affidavits have been filed by some of these unsecured creditors, which are attached from page no.172 onwards. A perusal thereof would however reveal that there is no name of the person mentioned who has deposed by way of these respective affidavits.

2. Ld. Authorized Representative representing the Applicant Companies has further e-filed the letters of the individuals representing these unsecured creditors without however there being any affidavits as the consents have to be filed only by way of the affidavits and not by way of the simple communications.

3. Ld. Authorized Representative representing the Applicant Companies on instructions states that the meeting of the unsecured creditors of the Transferee Company may be held, whereas dispensation with respect to the meetings of the shareholders be allowed. There are no secured creditors, neither in the Transferor Company nor in the Transferee Company.

4. Arguments heard. Order reserved.

-Sd- ***-Sd-***

(Ashish Verma) **(Praveen Gupta)**
Member (Technical) **Member (Judicial)**

3rd October, 2023
Kavya Prakash Srivastava
(Stenographer)